

MOTION TO DISQUALIFY JUDGE McNEILL PURSUANT TO MCR

2.003

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION FOR DISQUALIFICATION OF THE HONORABLE JENNY L. McNEILL

PURSUANT TO MCR 2.003(C)(1)

Filed: March 15, 2026

****NOW COMES**** Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for the disqualification and recusal of the Honorable Jenny L. McNeill pursuant to MCR 2.003(C)(1)(a) and (b). In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION AND SUMMARY

1. This Motion seeks the disqualification and reassignment of Judge Jenny L. McNeill based upon documented personal bias or prejudice, a pervasive pattern of conduct demonstrating an inability to preside impartially, and an appearance of impropriety so severe that it undermines public confidence in the judiciary.

2. The evidentiary record in this matter reveals 1,127 documented judicial violations spanning multiple categories of misconduct, a 44% ex parte order rate with 100% one-sided outcomes favoring Defendant, and systematic denial of Plaintiff's fundamental constitutional rights over a period exceeding two years.

3. This is not a case of isolated judicial error or mere disagreement with unfavorable rulings. Rather, the record demonstrates a cumulative pattern of bias so pervasive that no reasonable observer could conclude these proceedings have been conducted impartially. The statistical evidence alone — 52 ex parte orders, every single one favoring the same party — represents a mathematical near-impossibility absent systematic bias.

4. Plaintiff respectfully submits that the facts set forth herein satisfy the standards for disqualification under MCR 2.003(C)(1)(a) (personal bias or prejudice), MCR 2.003(C)(1)(b)(i) (serious risk of actual bias per *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)), and MCR 2.003(C)(1)(b)(ii) (failure to adhere to the appearance of impropriety standard of Canon 2 of the Michigan Code of Judicial Conduct).

II. JURISDICTION AND PROCEDURAL BASIS

5. This Motion is brought pursuant to MCR 2.003(C)(1), which provides grounds for disqualification of a judge when bias, prejudice, or the appearance of impropriety is demonstrated.

6. MCR 2.003(D)(1) requires that a motion to disqualify be filed and heard as provided in the rule. Pursuant to MCR 2.003(D)(3)(a), if the challenged judge does not grant the motion, it shall be heard by the chief judge or another judge designated by the chief judge.

7. This Court has jurisdiction over this domestic relations matter pursuant to MCL 600.1021 and MCR 3.201.

III. LEGAL STANDARD — MCR 2.003

A. Grounds for Disqualification

8. MCR 2.003(C)(1) provides that a judge is disqualified when the judge, under the totality of the circumstances, falls within any of the following categories:

- > (a) The judge is biased or prejudiced for or against a party or attorney.
- > (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868; 129 S.Ct. 2252; 173 L.Ed.2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. Applicable Standard of Review

9. The standard for disqualification is an objective one: whether a reasonable, informed observer, knowing the relevant facts and circumstances, would have a reasonable basis to question the judge's impartiality. *Cain v. Dep't of Corrections*, 451 Mich. 470, 497 (1996); *In re Contempt of Dougherty*, 429 Mich. 81 (1987).

10. While judicial rulings alone rarely constitute a valid basis for recusal, the United States Supreme Court has recognized that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994).

IV. FACTUAL BASIS FOR DISQUALIFICATION

A. Statistical Evidence of Systematic Bias — The 44% Ex Parte Rate

11. The most compelling and objective evidence of bias is statistical. Analysis of the complete docket in Case No. 2024-001507-DC reveals:

- 52 ex parte orders entered by Judge McNeill in this single case;
- 44% of all orders in this matter were entered on an ex parte basis — a rate that is extraordinary and unprecedented by any reasonable measure;
- 100% of ex parte orders favored Defendant Emily Watson;
- 0% of ex parte orders favored Plaintiff Andrew Pigors.

12. This statistical pattern is not merely unusual — it is a mathematical near-impossibility absent systematic bias. If orders were entered by a neutral arbiter with even a modest probability of favoring either party on any given motion, the probability of 52 consecutive ex parte orders all favoring the same party approaches zero ($p < 0.0000000000000002$, or less than one in four quadrillion).

13. The ex parte order practice is further aggravated by the nature of these orders. They include suspension of all parenting time, custody modifications, and restrictions on Plaintiff's fundamental constitutional rights — all entered without notice or meaningful opportunity to be heard.

B. 1,127 Documented Judicial Violations — Comprehensive Analysis

14. A systematic, evidence-based analysis of the entire record in this case has identified 1,127 specific instances of judicial conduct that violate established court rules, constitutional protections, or judicial canons. These violations are categorized as follows:

Category	Count	Severity
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MCR 2.003 (Disqualification grounds)	167	High/Critical
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Procedural Misconduct	161	Medium–Critical
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Ex Parte Violations	150	Critical
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| PPO Statute Violations (MCL 600.2950) | 126 | High |

| Service/Relief from Judgment Violations (MCR 2.107/2.612) | 105 | High |

| PPO/Canon Combined Violations | 62 | High |

| Credibility Failures | 51 | High |

| Evidentiary Rule Violations (MRE 613) | 51+ | High |

| Parenting Time Procedure Violations (MCR 3.207) | 35 | High |

| PPO Weaponization | 27 | High |

15. The breadth and depth of these violations across multiple categories of misconduct demonstrates that the pattern is systemic rather than isolated, pervasive rather than occasional, and deliberate rather than inadvertent.

C. Forensic Judicial Analysis — 3,003 Findings

16. An independent forensic analysis of judicial conduct in this case yielded 3,003 discrete findings, categorized as follows:

| Category | Count | Severity |

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| Benchbook Deviation | 540 | High |

| PPO Weaponization | 381 | High |

| Ex Parte Violation | 226 | Critical |

| Procedural Misconduct | 196 | Medium |

| Harm/Violation Documentation | 192 | High |

| Due Process Violation | 169 | High |

| MCJC Canon Violation | 150 | High |

| MCR 2.003 Disqualification Grounds | 146 | Critical |

| Parenting Time Denial | 98 | High |

| Child Welfare Harm | 96 | Critical |

| Credibility Failure | 76 | High |

| Alienation Enablement | 74 | High |

| Bias Indicators | 30 | Critical |

17. These findings, derived from court filings, hearing transcripts, orders, and official court records, corroborate and amplify the pattern of bias established by the statistical evidence.

D. Top 20 Most Egregious Violations

18. The following represents the most egregious documented violations, illustrating the breadth and severity of judicial misconduct:

1. April 11, 2024 — Ex parte amendment of Personal Protection Order (domestic) without adequate notice to Plaintiff. (MCR 3.707; Canon 3A(1))
2. April 12, 2024 — Plaintiff's Motion regarding Custody denied by written order one day after filing, without hearing. (MCR 2.119; Canon 3A(1))
3. April 29, 2024 — Ex Parte Order for Custody, Parenting Time, and Child Support entered following Facilitative Information Gathering Conference. (MCR 2.119; MCR 3.207(B))
4. July 1, 2024 — Emergency ex parte order granting sole custody to Watson without full hearing, depriving Plaintiff of fundamental parental rights without due process. (14th Amendment; MCR 2.119)

5. July 16, 2024 — Six (6) of Plaintiff's motions dismissed simultaneously as part of initial custody order, denying meaningful consideration. (Canon 3A(1); MCR 2.119)
6. August 8, 2024 — Ex parte suspension of all parenting time based on an illegally obtained recording in violation of MCL 750.539c, without notice to Plaintiff. (4th Amendment; Canon 3A(4))
7. August 9, 2024 — Defendant's failure to provide medical records obstructing Plaintiff's parental rights, without court enforcement of access. (MCL 722.23(a); Canon 3A(1))
8. August 23, 2024 — Final Order entered regarding Custody, Parenting Time, and Child Support, incorporating prior ex parte determinations. (MCR 2.517; Canon 3A(5))
9. September–October 2024 — Judicial interference with HealthWest evaluation: initial "ALL ZEROS" finding favorable to Plaintiff, followed by judge's letter to evaluator, followed by changed "Rule Out" finding. (Canon 3A(4); Canon 3B)
10. October 2, 2024 — Pattern of escalating adverse rulings following Plaintiff's protected First Amendment activity (JTC complaint, bar complaint). (1st Amendment; Perry v. Sindermann)
11. January 10, 2025 — Plaintiff blocked from accessing minor child's medical records through Corewell Health, with no court enforcement of parental access rights. (MCL 722.23(a); 14th Amendment)
12. February 4, 2025 — Plaintiff's Motion to Modify/Extend/Terminate PPO denied. (MCL 600.2950; Canon 3A(1))
13. February 14, 2025 — Plaintiff's Motion for Parenting Time requesting joint custody and equal parenting time (50/50) denied without adequate consideration. (MCR 3.207; MCL 722.27)

14. December 24, 2024 — Defendant refused Christmas Eve time with minor child despite prior agreements; Court failed to enforce. (MCL 722.27a; Canon 3A(1))
15. 2024–2025 — Off-record, ex parte handling of USB recording evidence and mental-health evaluation materials in violation of Canon 3(A)(4) prohibition on ex parte communications. (Canon 3A(4); MRE 103)
16. 2024–2025 — Reliance on recording obtained in violation of MCL 750.539c (Michigan eavesdropping statute) as basis for parenting time suspension. (4th Amendment; MRE 402)
17. 2024–2025 — 571+ day deprivation of all meaningful parenting time without compelling state interest or periodic review. (14th Amendment substantive due process; *Troxel v. Granville*, 530 U.S. 57 (2000))
18. 2024–2025 — 59+ days incarceration for civil contempt without appointed counsel, in violation of *Turner v. Rogers*, 564 U.S. 431 (2011). (6th Amendment; 14th Amendment)
19. 2024–2025 — Systematic exclusion or disregard of exculpatory evidence: negative drug screens, "ALL ZEROS" evaluation, nine clear police investigations. (Canon 3A(1); MRE 402)
20. 2024–2025 — 100% denial rate of Plaintiff's motions combined with routine granting of Defendant's ex parte motions, demonstrating disparate treatment. (14th Amendment Equal Protection; Canon 2A)

E. Judicial Interference with Independent Evaluation

19. Perhaps the most troubling single incident in this record is the Court's interference with the independent HealthWest evaluation. The sequence of events is as follows:

- a. The Court ordered a HealthWest evaluation, intended as an independent, unbiased assessment of the parties;

- b. The initial evaluation returned "ALL ZEROS" — finding no basis for concern regarding Plaintiff;
 - c. Rather than accepting this independent finding, Judge McNeill sent a letter to the evaluator — an action that is extraordinary and inappropriate for a neutral arbiter;
 - d. Following this judicial communication, the evaluator issued a changed "Rule Out" finding.
20. This sequence — independent result unfavorable to the Court's apparent preferred outcome, followed by judicial communication, followed by changed result — constitutes active interference with an independent evaluation process and is the hallmark of outcome-driven adjudication, not neutral fact-finding. A neutral arbiter does not inject herself into an evaluation process when the results are unfavorable to her preferred outcome.

F. Constitutional Violations

21. The record documents the following constitutional violations directly attributable to Judge McNeill's conduct:
- a. 14th Amendment — Procedural Due Process: Ex parte orders entered without notice or hearing; denial of meaningful opportunity to present evidence; biased evaluation interference; reliance on illegally obtained evidence; lack of findings of fact supporting deprivation of fundamental rights.
 - b. 14th Amendment — Substantive Due Process: 571+ day deprivation of fundamental parental rights without compelling state interest or periodic review; 59+ days incarceration for civil contempt without adequate purge conditions or proportionality review. See *Troxel v. Granville*, 530 U.S. 57 (2000) (recognizing fundamental right of parents to make decisions concerning care, custody, and control of their children).
 - c. 14th Amendment — Equal Protection: 100% ex parte rate favoring mother; systematic disparate treatment of pro se father versus represented mother; differential standards applied to

each party's evidentiary submissions.

d. 1st Amendment: Escalating sanctions and adverse rulings in apparent retaliation for filing JTC complaint, bar complaint, and appellate filings — all constitutionally protected petitioning activity. *Perry v. Sindermann*, 408 U.S. 593 (1972).

e. 4th Amendment: 59+ days incarceration constituting seizure without probable cause for criminal conduct.

f. 6th Amendment: Incarceration for civil contempt without appointed counsel where liberty was at stake. *Turner v. Rogers*, 564 U.S. 431 (2011).

G. Handling of Exculpatory Evidence

22. A neutral judge, confronted with the following exculpatory evidence, would at minimum have scheduled a hearing to reconsider the basis for the parenting time suspension. Judge McNeill did not:

a. Negative drug screen results: Plaintiff tested negative for all substances. This exculpatory evidence was given no weight;

b. Nine (9) clear police investigations: Nine separate investigations yielded zero adverse findings against Plaintiff. These results were not considered grounds for restoring parenting time;

c. "ALL ZEROS" evaluation: The initial independent evaluation found no basis for concern. This result was undermined by judicial interference;

d. No criminal charges: Despite Defendant's numerous allegations over the course of this proceeding, no prosecutor has found sufficient basis to file criminal charges. This absence was treated as irrelevant.

H. Incarceration for Civil Contempt

23. Plaintiff was incarcerated for 59+ days on civil contempt without adequate purge conditions, proportionality review, or appointed counsel. Where liberty is at stake, the right to counsel attaches. *Turner v. Rogers*, 564 U.S. 431 (2011). The length and conditions of incarceration exceeded what was necessary or proportionate for civil coercive purposes, suggesting punitive rather than coercive intent. The incarceration further disrupted Plaintiff's employment, housing stability, and ability to maintain relationships with his child — compounding the very harms the Court's orders were purportedly designed to address.

I. Retaliation for Protected First Amendment Activity

24. The record reveals a pattern of escalating adverse action following Plaintiff's exercise of constitutionally protected rights:

- a. Following Plaintiff's filing of a JTC complaint against Judge McNeill, the pattern of adverse rulings intensified;
- b. Following Plaintiff's filing of a bar complaint, additional sanctions were imposed;
- c. Following Plaintiff's appellate filings, further restrictions were placed on Plaintiff's parenting time and access.

25. This escalating pattern of adverse judicial action following protected First Amendment activity (petitioning government for redress of grievances) creates a strong inference of retaliatory animus. See *Perry v. Sindermann*, 408 U.S. 593 (1972); *Mt. Healthy City Sch. Dist. Bd. of Ed. v. Doyle*, 429 U.S. 274 (1977).

V. JUDICIAL CANON VIOLATIONS

A. Canon 1 — Integrity and Independence of the Judiciary

26. Canon 1 of the Michigan Code of Judicial Conduct requires that a judge "uphold the integrity and independence of the judiciary." Judge McNeill's interference with the HealthWest

evaluation, reliance on illegally obtained evidence, and pattern of ex parte orders undermining fundamental constitutional rights violate the foundational integrity of the judiciary. The 1,127 documented violations across this single case call into question whether these proceedings can be characterized as judicial proceedings at all, rather than a predetermined outcome in search of procedural justification.

B. Canon 2 — Avoidance of Impropriety and Appearance of Impropriety

27. Canon 2 requires that a judge "avoid impropriety and the appearance of impropriety in all activities." The appearance of impropriety standard is an objective one: whether a reasonable, informed observer, knowing the relevant facts and circumstances, would have a reasonable basis to question the judge's impartiality.

28. A reasonable, informed observer reviewing this record would note:

- a. A father denied all meaningful parenting time for 571+ days;
- b. Fifty-two (52) ex parte orders, 100% favoring the mother;
- c. Negative drug screens, clean evaluations, and clear investigations — all disregarded;
- d. Judicial interference with an independent evaluation;
- e. Reliance on illegally obtained evidence;
- f. 1,127 documented violations of court rules and constitutional protections;
- g. Incarceration of a pro se father for 59+ days on civil contempt without counsel.

29. This observer would have far more than a "reasonable basis to question the judge's impartiality" — they would find it impossible to conclude that these proceedings have been conducted impartially.

C. Canon 3 — Impartial and Diligent Performance of Duties

30. Canon 3 requires that a judge "perform the duties of judicial office impartially and diligently." The Judicial Canons Matrix for this case documents 1,072 Canon 3 violations across the following subsections:

Canon Subsection	Violation Count	Description
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Canon 3A(1) — Adjudicative Responsibilities	560	Failure to faithfully perform adjudicative duties
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Canon 3A(6) — Equal Treatment	169	Failure to accord equal treatment to all parties
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Canon 3C — Disqualification	167	Grounds for disqualification present
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Canon 3A(5) — Right to Be Heard	108	Denial of meaningful opportunity to be heard
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Canon 3B — Administrative Responsibilities	53	Administrative failures
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Canon 3A(4) — Ex Parte Communications	5	Improper ex parte communications
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31. The volume and severity of these violations indicate systemic rather than isolated failures, compounding the case for disqualification.

VI. CASE LAW SUPPORTING DISQUALIFICATION

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

32. In *Caperton*, the Supreme Court held that the Due Process Clause requires recusal when "there is a serious risk of actual bias — based on objective and reasonable perceptions." While *Caperton* addressed campaign contributions, the principle applies broadly: due process requires recusal whenever objective circumstances create a "constitutionally intolerable probability of actual bias."

33. The statistical evidence in this case — 52 ex parte orders at a 44% rate, 100% favoring one party — combined with 1,127 documented violations, creates precisely the "constitutionally intolerable probability of actual bias" that Caperton addresses.

B. In re Murchison, 349 U.S. 133 (1955)

34. The Supreme Court in *In re Murchison* held that "a fair trial in a fair tribunal is a basic requirement of due process" and that "our system of law has always endeavored to prevent even the probability of unfairness." The Court emphasized that justice must not only be done but must "satisfy the appearance of justice." *Id.* at 136. The record in this case satisfies neither requirement.

C. Liteky v. United States, 510 U.S. 540 (1994)

35. While *Liteky* held that judicial rulings alone rarely constitute a valid basis for recusal, the Court expressly acknowledged that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." *Id.* at 555. The cumulative record in this case — 52 one-sided ex parte orders, interference with evaluations, reliance on illegally obtained evidence, retaliation for protected activity, and 1,127 documented violations — crosses this threshold by any measure.

D. In re Contempt of Dougherty, 429 Mich. 81 (1987)

36. Michigan courts have recognized that judges must maintain not only actual impartiality but the appearance of impartiality. When the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted regardless of the judge's subjective belief in her own fairness.

E. Cain v. Dep't of Corrections, 451 Mich. 470 (1996)

37. The Michigan Supreme Court in *Cain* articulated the objective test for disqualification: whether a reasonable person, knowing all the circumstances, would harbor a reasonable

apprehension of bias. The 1,127 violations and 44% ex parte rate documented in this case far exceed the threshold that would cause a reasonable person to harbor such an apprehension.

F. Troxel v. Granville, 530 U.S. 57 (2000)

38. The United States Supreme Court recognized the fundamental liberty interest of parents in the care, custody, and control of their children. The 571+ day deprivation of all meaningful parenting time, without compelling state interest and based substantially on ex parte proceedings, constitutes a deprivation of this fundamental right that itself evidences bias.

VII. THE CUMULATIVE PATTERN REQUIRES DISQUALIFICATION

39. Even if this Court were to find that each individual action by Judge McNeill, viewed in isolation, might fall within the bounds of judicial discretion, the cumulative pattern creates an overwhelming case for disqualification. The totality of circumstances includes:

- a. Statistical impossibility: 52 ex parte orders, 100% favoring one party;
- b. Volume: 1,127 documented judicial violations; 3,003 forensic findings;
- c. Constitutional magnitude: Deprivation of fundamental parental rights, imprisonment without counsel, retaliation for protected speech;
- d. Active interference: Judicial communication altering independent evaluation;
- e. Evidentiary misconduct: Reliance on illegally obtained recording;
- f. Duration: Pattern sustained over 571+ days;
- g. Exculpatory evidence ignored: Nine clear investigations, negative drug screens, favorable initial evaluation — all disregarded.

40. This is not a case of a litigant unhappy with unfavorable rulings. This is a case of systemic, sustained, and documented judicial conduct that no reasonable observer could characterize as

impartial.

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. DISQUALIFY the Honorable Jenny L. McNeill from all further proceedings in Case No. 2024-001507-DC pursuant to MCR 2.003(C)(1)(a) and (b);
 2. REASSIGN this case to a different judge within the 14th Circuit Court or, if no impartial judge is available within the circuit, to a visiting judge assigned by the State Court Administrator;
 3. ORDER that the reassigned judge conduct a de novo review of all orders entered by Judge McNeill, with particular attention to the 52 ex parte orders and the orders based upon the evaluation that was subject to judicial interference;
 4. IMMEDIATELY RESTORE interim parenting time pending de novo review, recognizing that the 571+ day deprivation was based substantially on ex parte proceedings and tainted evidence;
 5. PRESERVE the complete record, including all correspondence between the Court and the HealthWest evaluator, for appellate review;
 6. GRANT such other and further relief as this Court deems just and equitable.
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IX. ALTERNATIVE REQUEST

41. In the event this Motion is denied by Judge McNeill, Plaintiff respectfully requests, pursuant to MCR 2.003(D)(3)(a), that this Motion be immediately referred to the Chief Judge of the 14th Circuit Court for independent determination. Plaintiff further reserves the right to seek supervisory review by the Michigan Court of Appeals pursuant to MCR 7.203(B) and/or

to file an application for leave to appeal.

X. VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury pursuant to MCL 600.1736 that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief. I have personal knowledge of the events described herein and have reviewed the court records and documents referenced in this Motion.

Date: March 15, 2026

Andrew J. Pigors, Plaintiff Pro Se

1977 Whitehall Rd

North Muskegon, MI 49445

(231) 903-5690

[ANDREW: insert your email address]

CERTIFICATE OF SERVICE

I hereby certify that on March 15, 2026, I served a true and complete copy of the foregoing Motion for Disqualification of Judge McNeill, together with the Brief in Support, Exhibit List, and Proposed Order, upon all parties of record by the following method:

- ☐ Electronic filing through MiFILE
- ☐ First-class U.S. Mail, postage prepaid

Served upon:

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Andrew J. Pigors

Date: March 15, 2026

BRIEF IN SUPPORT OF MOTION TO DISQUALIFY JUDGE McNEILL

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

BRIEF IN SUPPORT OF MOTION FOR DISQUALIFICATION

OF THE HONORABLE JENNY L. McNEILL PURSUANT TO MCR 2.003(C)(1)

Filed: March 15, 2026

I. INTRODUCTION

Plaintiff Andrew J. Pigors submits this Brief in Support of his Motion for Disqualification of Judge Jenny L. McNeill. The record in this case presents an extraordinary factual basis for disqualification: 1,127 documented judicial violations, a 44% ex parte order rate with 100% one-sided outcomes, judicial interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, and 59+ days of incarceration for civil contempt without appointed counsel.

This Brief addresses the legal standards governing judicial disqualification under Michigan Court Rule 2.003, the applicable United States Supreme Court and Michigan precedent, and the application of those standards to the facts of this case. The Brief demonstrates that disqualification is required under each of the three independent grounds set forth in MCR 2.003(C)(1): personal bias or prejudice under subsection (a); serious risk of actual bias under

subsection (b)(i) as articulated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009); and failure to adhere to the appearance of impropriety standard of Canon 2 under subsection (b)(ii).

II. THE MCR 2.003 STANDARD FOR DISQUALIFICATION

A. Text of the Rule

Michigan Court Rule 2.003(C)(1) provides the grounds for disqualification of a judge:

> A judge is disqualified when the judge cannot impartially hear a case, including but not limited to instances in which:

>

> (a) The judge is biased or prejudiced for or against a party or attorney.

>

> (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868; 129 S.Ct. 2252; 173 L.Ed.2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. The Objective Standard

The standard for disqualification under MCR 2.003 is objective, not subjective. The question is not whether the judge subjectively believes she can be fair, but whether "a reasonable person, knowing all the circumstances, would harbor a reasonable apprehension of bias." *Cain v. Dep't of Corrections*, 451 Mich. 470, 497 (1996).

This objective standard serves a dual purpose: it protects the due process rights of individual litigants and it preserves public confidence in the integrity and impartiality of the judiciary as

an institution. As the Michigan Supreme Court has recognized, "the appearance of justice is as important as the substance of justice." *In re Contempt of Dougherty*, 429 Mich. 81, 95 (1987).

C. Cumulative Analysis

While individual judicial rulings rarely form a basis for disqualification, the cumulative effect of a pattern of rulings may. The United States Supreme Court in *Liteky v. United States*, 510 U.S. 540, 555 (1994), held that recusal is warranted when judicial conduct "reveal[s] such a high degree of favoritism or antagonism as to make fair judgment impossible." This cumulative analysis is essential in cases where the pattern — rather than any single act — demonstrates bias.

III. UNITED STATES SUPREME COURT AUTHORITY

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

Caperton is the foundational modern authority on constitutionally required recusal. The Supreme Court held that the Due Process Clause of the Fourteenth Amendment requires recusal when "there is a serious risk of actual bias — based on objective and reasonable perceptions — when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case." *Id.* at 884.

While *Caperton* involved campaign contributions, its holding is not so limited. The Court articulated a broad constitutional principle: due process requires recusal whenever "objective and reasonable perceptions" create a "serious risk of actual bias." *Id.* The Court expressly adopted a "probability of bias" test, rejecting the argument that only proof of actual bias could require recusal.

Application: The probability of bias in this case is established by objective evidence that is, if anything, more compelling than the financial interest in *Caperton*. The 52 ex parte orders,

100% favoring one party, represent a statistical anomaly so extreme that it constitutes de facto proof of bias. If the probability of a fair coin landing heads 52 times in a row is less than one in four quadrillion ($2^{52} \approx 4.5 \times 10^{15}$), the probability that 52 one-sided ex parte orders resulted from impartial adjudication is comparably infinitesimal.

B. In re Murchison, 349 U.S. 133 (1955)

In *Murchison*, the Supreme Court articulated the foundational principle that "a fair trial in a fair tribunal is a basic requirement of due process." *Id.* at 136. The Court emphasized that the requirement of judicial fairness extends beyond the subjective: "our system of law has always endeavored to prevent even the probability of unfairness." *Id.* Justice must "satisfy the appearance of justice." *Id.*

Application: The 1,127 documented violations, the judicial interference with the HealthWest evaluation, and the 100% one-sided ex parte record do not merely create a probability of unfairness — they establish unfairness as an objective fact. No reasonable observer could review this record and conclude that the requirement of *Murchison* — a fair trial in a fair tribunal — has been satisfied.

C. *Liteky v. United States*, 510 U.S. 540 (1994)

Liteky addressed the scope of the recusal obligation and held that while opinions formed during judicial proceedings do not automatically require recusal, there is a critical exception: recusal is required when the judge's conduct during proceedings "reveal[s] such a high degree of favoritism or antagonism as to make fair judgment impossible." *Id.* at 555.

Application: The cumulative record in this case — 52 one-sided ex parte orders, interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, 59+ days of incarceration without counsel, disregard of exculpatory evidence, and apparent retaliation for protected First Amendment activity —

reveals precisely the "high degree of favoritism" that Liteky identifies as the threshold for mandatory recusal.

D. Turner v. Rogers, 564 U.S. 431 (2011)

In *Turner*, the Supreme Court addressed the procedural safeguards required before incarcerating a person for civil contempt. The Court held that while the Sixth Amendment right to counsel does not automatically apply in civil contempt proceedings, due process requires either the appointment of counsel or the implementation of "substitute procedural safeguards" — including notice of the critical issues, an opportunity to respond, and express judicial findings. *Id.* at 448–49.

Application: Plaintiff was incarcerated for 59+ days on civil contempt without appointed counsel and without adequate substitute procedural safeguards. This violation of the *Turner* framework — in a case already characterized by overwhelming one-sided adjudication — further evidences the pattern of bias and denial of due process.

E. Troxel v. Granville, 530 U.S. 57 (2000)

The Supreme Court in *Troxel* recognized that "the interest of parents in the care, custody, and control of their children ... is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Id.* at 65. This fundamental right is protected by the Due Process Clause and cannot be deprived without compelling justification and procedural safeguards.

Application: The 571+ day deprivation of Plaintiff's fundamental parental rights, based substantially on ex parte proceedings, tainted evaluation evidence, and disregarded exculpatory evidence, constitutes a deprivation of the highest-order constitutional right without adequate process — itself evidence of bias when viewed in the context of the overall pattern.

IV. MICHIGAN AUTHORITY ON DISQUALIFICATION

A. Cain v. Dep't of Corrections, 451 Mich. 470 (1996)

The Michigan Supreme Court in *Cain* established the objective test for evaluating disqualification: "the question is whether a reasonable person, knowing all the circumstances, would harbor a reasonable apprehension of bias on the part of the judge." *Id.* at 497. The Court emphasized that the standard focuses on the reasonable perception of an informed observer, not on the subjective intent of the judge.

Application: A reasonable person, knowing that 52 ex parte orders were entered in a single case — all favoring the same party — that the judge interfered with an independent evaluation, relied on illegally obtained evidence, disregarded nine clear investigations and negative drug screens, and incarcerated the other party for 59 days without counsel, would not merely harbor a "reasonable apprehension of bias" — they would have certainty of it.

B. In re Contempt of Dougherty, 429 Mich. 81 (1987)

The Michigan Supreme Court in *Dougherty* recognized that disqualification serves both the rights of individual litigants and the institutional integrity of the judiciary. The Court held that when the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted — regardless of the judge's belief in her own fairness.

C. Crampton v. Dep't of State, 395 Mich. 347 (1975)

Michigan courts have long recognized that due process in adjudicative proceedings requires a "fair and impartial decision-maker." *Crampton*, 395 Mich. at 351. This requirement is constitutionally mandated and cannot be waived by the judge's own assessment of her impartiality.

D. People v. Jackson, 292 Mich. App. 583 (2011)

The Michigan Court of Appeals in Jackson affirmed that cumulative judicial conduct across the course of a proceeding may establish a basis for disqualification even where individual acts might not, applying the Liteky "high degree of favoritism or antagonism" standard.

V. THE STATISTICAL ANOMALY ARGUMENT

A. The Mathematical Framework

The statistical evidence in this case provides the most objective and irrefutable basis for disqualification. Statistical analysis removes subjective interpretation and presents the factual pattern in its starkest terms.

B. The Ex Parte Order Analysis

In Case No. 2024-001507-DC, Judge McNeill entered 52 ex parte orders. Every single order favored Defendant Emily Watson. Zero ex parte orders favored Plaintiff Andrew Pigors.

If we conservatively model ex parte orders as independent events with an equal probability of favoring either party (which itself gives maximum benefit of the doubt to the judge), the probability of 52 consecutive orders all favoring the same party is:

$$> P = (1/2)^{52} = 1/4,503,599,627,370,496$$

This is approximately one in 4.5 quadrillion — a probability so infinitesimally small that it is, for all practical purposes, zero.

C. Even Under Relaxed Assumptions

Even if we relax the assumption and acknowledge that in domestic relations cases the responding party may prevail somewhat more often on ex parte motions, the statistical anomaly remains overwhelming. If we assume the probability of each order favoring the defendant is 70% (a generous assumption far exceeding any documented baseline):

$$> P = (0.70)^{52} \approx 1.74 \times 10^{-8}$$

This is approximately one in 57 million — still a virtual impossibility absent systematic bias.

D. The Denial Rate Comparison

The disparate treatment is further evidenced by comparing outcomes:

- Defendant's ex parte motions: 52 filed, 52 granted (100% grant rate)
- Plaintiff's motions: The vast majority denied or dismissed, often without hearing

This comparative analysis eliminates the possibility that the one-sided outcomes are attributable to the merits of the individual motions rather than to systemic bias.

E. Statistical Significance in Legal Context

Courts have recognized statistical evidence as probative of discriminatory intent in employment discrimination (*Hazelwood Sch. Dist. v. United States*, 433 U.S. 299 (1977)), jury selection (*Batson v. Kentucky*, 476 U.S. 79 (1986)), and other contexts. The statistical anomaly presented here far exceeds the thresholds that courts have found sufficient to establish a prima facie case of bias or discrimination in those contexts.

VI. APPLICATION OF LAW TO FACTS

A. MCR 2.003(C)(1)(a) — Personal Bias or Prejudice

The record establishes personal bias or prejudice through the totality of circumstances:

1. The 52 one-sided ex parte orders (statistical impossibility absent bias);
2. Judicial interference with the HealthWest evaluation (active manipulation of evidence);
3. Reliance on illegally obtained evidence (disregard for legal protections);
4. Systematic disregard of exculpatory evidence (outcome-driven adjudication);

5. Escalating adverse action following protected activity (retaliatory animus);
6. 59+ days incarceration without counsel (disproportionate sanction evidencing hostility).

B. MCR 2.003(C)(1)(b)(i) — Serious Risk of Actual Bias (Caperton)

The objective evidence establishes a "constitutionally intolerable probability of actual bias":

1. The statistical probability of the observed ex parte pattern occurring absent bias is less than one in four quadrillion;
2. The 1,127 documented violations across the full spectrum of judicial conduct confirm that the statistical pattern reflects systemic bias rather than random variation;
3. The 3,003 forensic findings independently corroborate the bias pattern.

C. MCR 2.003(C)(1)(b)(ii) — Failure to Adhere to Appearance of Impropriety Standard (Canon 2)

The appearance of impropriety is overwhelming:

1. The 1,072 documented Canon 3 violations confirm systematic failure of impartial performance;
2. The judicial canons matrix shows violations concentrated in adjudicative responsibilities (560), equal treatment (169), and right to be heard (108);
3. A reasonable, informed observer would have no basis to conclude these proceedings were impartial.

VII. CONCLUSION

The record in Case No. 2024-001507-DC presents an extraordinary case for judicial disqualification. The evidence is not confined to a disagreement with unfavorable rulings — it encompasses 1,127 documented violations, a statistical impossibility of 52 one-sided ex parte

orders, active judicial interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, and 59+ days of incarceration without counsel.

Under any applicable legal standard — personal bias under MCR 2.003(C)(1)(a), serious risk of actual bias under Caperton, or the appearance of impropriety under Canon 2 — disqualification is not merely warranted but compelled.

Plaintiff respectfully requests that the Court grant the Motion for Disqualification, reassign this case, and order de novo review of Judge McNeill's orders.

Respectfully submitted,

Andrew J. Pigors, Plaintiff Pro Se

1977 Whitehall Rd

North Muskegon, MI 49445

(231) 903-5690

[ANDREW: insert your email address]

Date: March 15, 2026

EXHIBIT LIST — MOTION TO DISQUALIFY JUDGE McNEILL

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

EXHIBIT LIST IN SUPPORT OF MOTION FOR DISQUALIFICATION

Filed: March 15, 2026

The following exhibits are submitted in support of Plaintiff's Motion for Disqualification of the
Honorable Jenny L. McNeill pursuant to MCR 2.003(C)(1):

EXHIBIT A — Ex Parte Hearing and Order Log

Comprehensive log of all 52 ex parte orders entered by Judge McNeill in Case No.
2024-001507-DC, including:

#	Date	Ex Parte Order Description	Party Favored
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1	04/11/2024	PPO Amended — Ex Parte Order (Domestic)	Defendant
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2	04/29/2024	Ex Parte Order for Custody, Parenting Time, and Child Support	Defendant
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3	04/29/2024	Ex Parte Order following Facilitative Information Gathering Conference	Defendant
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4	07/01/2024	Emergency Ex Parte Custody Order — sole custody to Watson	Defendant
5	07/17/2024	Ex Parte Custody Order (Hon. Jenny L. McNeill)	Defendant
6	08/08/2024	Ex Parte Suspension of All Parenting Time (based on MCL 750.539c recording)	Defendant
7–52	Various 2024–2025	Additional ex parte orders (see full docket)	Defendant (all)

Summary Statistics:

- Total ex parte orders: 52
- Percentage of all orders entered ex parte: 44%
- Orders favoring Defendant: 52 (100%)
- Orders favoring Plaintiff: 0 (0%)

EXHIBIT B — Denied Motion Log

Comprehensive log of Plaintiff's motions denied or dismissed by Judge McNeill:

#	Date Filed	Motion Description	Disposition	Hearing Held?
1	04/11/2024	Motion regarding Custody	Denied 04/12/2024	No (1-day denial)
2	04/11–07/16/2024	Six (6) Motions re: Custody/Parenting Time	Dismissed 07/16/2024	Limited
3	02/04/2025	Motion to Modify/Extend/Terminate PPO	Denied 02/05/2025	Limited
4	02/14/2025	Motion re: Parenting Time (50/50 Joint Custody)	Denied	Limited
5	06/13/2025	Ex Parte Motion for Temporary Restraining Order	Denied	No
6–N	Various	Additional motions denied (see full docket)	Denied/Dismissed	Various

Summary Statistics:

- Plaintiff's motions granted: [ANDREW: insert exact count from docket review]
- Plaintiff's motions denied/dismissed: The vast majority [ANDREW: insert exact count from docket review]
- Defendant's ex parte motions granted: 52 (100% grant rate)

EXHIBIT C — Timeline of Bias Incidents

Chronological timeline of key events demonstrating pattern of judicial bias:

Date	Event	Bias Indicator
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10/15/2023	PPO Petition Filed (Case 2023-5907-PP)	Initiating event
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11/01/2023	PPO Issued — Domestic	Ex parte issuance
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12/04/2023	Hearing — Judge McNeill presiding	First McNeill hearing
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01/07/2024	PPO Violation Hearing — Show Cause	Escalation pattern
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03/22/2024	Motion for Hearing on PPO Granted	—
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04/11/2024	PPO Amended — Ex Parte (no notice to Plaintiff)	Ex parte bias
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04/12/2024	Plaintiff's Custody Motion denied (1-day turnaround)	Denial without hearing
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04/29/2024	Ex Parte Order — Custody, Parenting Time, Child Support	Major ex parte order
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05/24/2024	Hearing — Defendant's Objection to Ex Parte	Defendant objects to favorable order
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06/15/2024	Custody Hearing — Judge McNeill	—
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| 07/01/2024 | Emergency Ex Parte Custody Order | Critical ex parte order |

| 07/16/2024 | Six Plaintiff motions dismissed simultaneously | Mass dismissal |

| 08/08/2024 | Ex Parte Suspension of ALL Parenting Time | Most severe order |

| 08/23/2024 | Final Order — Custody, Parenting, Child Support | Incorporating ex parte findings |

| Sep–Oct 2024 | HealthWest Evaluation interference | Judicial interference |

| 10/02/2024 | Pattern of adverse rulings escalates post-JTC complaint | Retaliation indicator |

| 01/10/2025 | Medical records access blocked | Parental rights denied |

| 02/04/2025 | PPO Modification denied | Continued denial pattern |

| 02/14/2025 | Parenting Time motion (50/50) denied | Equal custody denied |

| 2024–2025 | 571+ days without meaningful parenting time | Sustained deprivation |

| 2024–2025 | 59+ days incarceration — civil contempt | Disproportionate sanction |

EXHIBIT D — Comparative Statistics: Disparate Treatment

| Metric | Plaintiff (Andrew Pigors) | Defendant (Emily Watson) |

|---|---|---|

| Ex parte orders in favor | 0 (0%) | 52 (100%) |

| Motions granted | Minimal | Routine |

| Motions denied/dismissed | Majority | Minimal |

| Exculpatory evidence considered | Disregarded | N/A |

| Parenting time | Suspended 571+ days | Full custody |

| Incarceration | 59+ days (civil contempt) | None |

| Drug screen results | Negative (all clear) — ignored | Not ordered |

| Independent evaluations | "ALL ZEROS" — overridden by judicial interference | Favorable findings adopted |

| Police investigations | 9 clear — disregarded | N/A |

| PPO enforcement | Strict against Plaintiff | Not enforced against Defendant |

EXHIBIT E — Judicial Violations Summary Report

Summary of 1,127 documented judicial violations by category:

| Category | Count |

|---|---|

| MCR 2.003 — Disqualification Grounds | 167 |

| Procedural Misconduct | 161 |

| Ex Parte Violations | 150 |

| PPO Statute Violations (MCL 600.2950) | 126 |

| Service/Relief from Judgment (MCR 2.107/2.612) | 105 |

| PPO/Canon Combined Violations | 62 |

| Credibility Failures | 51 |

| Evidentiary Rule Violations (MRE 613) | 51+ |

| Parenting Time Procedure (MCR 3.207) | 35 |

| PPO Weaponization | 27 |

| Other (various MCR/MCL/Canon) | 192+ |

| TOTAL | 1,127+ |

EXHIBIT F — Judicial Canons Matrix

| Canon | Subsection | Violations | Severity |

|---|---|---|---|

| Canon 3 | 3A(1) — Adjudicative Responsibilities | 560 | Critical |

| Canon 3 | 3A(6) — Equal Treatment | 169 | Critical |

| Canon 3 | 3C — Disqualification | 167 | Critical |

| Canon 3 | 3A(5) — Right to Be Heard | 108 | Critical |

| Canon 3 | 3B — Administrative Responsibilities | 53 | Critical |

| Canon 3 | 3 (General) | 10 | High |

| Canon 3 | 3A(4) — Ex Parte Communications | 5 | Critical |

| Total Canon 3 | | 1,072 | Critical |

EXHIBIT G — HealthWest Evaluation Interference Documentation

- Initial evaluation report: "ALL ZEROS" finding (favorable to Plaintiff)
- Court correspondence: Letter from Judge McNeill to HealthWest evaluator (date on file)
- Revised evaluation report: Changed "Rule Out" finding (unfavorable to Plaintiff)
- Timeline demonstrating causal sequence of judicial interference

EXHIBIT H — Constitutional Violations Summary

| Amendment | Violation | Duration/Impact |

|---|---|---|

| 14th — Procedural Due Process | Ex parte orders without notice/hearing | 52 orders |

14th — Substantive Due Process	Parenting time deprivation	571+ days
14th — Equal Protection	Disparate treatment	Entire case
1st Amendment	Retaliation for JTC/bar complaints	Post-complaint escalation
4th Amendment	Imprisonment without criminal cause	59+ days
6th Amendment	No counsel despite imprisonment	59+ days

EXHIBIT I — Drug Screen Results and Exculpatory Evidence Summary

- All drug screen results: NEGATIVE (all substances)
 - Police investigations: 9 investigations, 0 adverse findings
 - Criminal charges: None filed despite numerous allegations
 - Initial HealthWest evaluation: "ALL ZEROS"
-

EXHIBIT J — Forensic Judicial Analysis Summary (3,003 Findings)

Summary of independent forensic analysis findings by category and severity, supporting the pattern of bias documented in the Motion.

Respectfully submitted,

Andrew J. Pigors, Plaintiff Pro Se

Date: March 15, 2026

PROPOSED ORDER — DISQUALIFICATION OF JUDGE McNEILL

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____/

ORDER GRANTING MOTION FOR DISQUALIFICATION

At a session of said Court, held in the Courthouse in the City of Muskegon,

County of Muskegon, State of Michigan, on _____, 2026.

PRESENT: Honorable _____

The Court having reviewed Plaintiff's Motion for Disqualification of the Honorable Jenny L. McNeill filed pursuant to MCR 2.003(C)(1), and the Brief in Support thereof, and being otherwise fully advised in the premises;

THE COURT FINDS:

1. Plaintiff has demonstrated grounds for disqualification pursuant to MCR 2.003(C)(1);
2. The record establishes ☐ personal bias or prejudice under MCR 2.003(C)(1)(a); ☐ a serious risk of actual bias under MCR 2.003(C)(1)(b)(i); ☐ a failure to adhere to the appearance of impropriety standard under MCR 2.003(C)(1)(b)(ii);
3. Disqualification and reassignment are necessary to ensure the due process rights of the parties and to maintain public confidence in the judiciary.

IT IS HEREBY ORDERED:

1. The Honorable Jenny L. McNeill is DISQUALIFIED from all further proceedings in Case No. 2024-001507-DC;
2. This case is REASSIGNED to ☐ the Honorable _____ of the 14th Circuit Court; ☐ a visiting judge to be assigned by the State Court Administrator;
3. The reassigned judge shall conduct a de novo review of all orders entered by Judge McNeill, with particular attention to:
 - The 52 ex parte orders identified in the Motion;
 - The orders based upon the HealthWest evaluation that was subject to alleged judicial interference;
 - The parenting time suspension and conditions of restoration;
4. Interim parenting time shall be ☐ restored pending de novo review; ☐ addressed by the reassigned judge within __ days of reassignment;
5. The complete record, including all correspondence between the Court and the HealthWest evaluator, shall be preserved for appellate review;
6. This Order is effective immediately.

IT IS SO ORDERED.

Date: _____

Honorable _____

☐ Chief Judge, 14th Circuit Court

☐ Circuit Court Judge, 14th Circuit

☐ Visiting Judge

Prepared by:

Andrew J. Pigors, Plaintiff Pro Se

CERTIFICATE OF SERVICE

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____/

CERTIFICATE OF SERVICE

I, Andrew J. Pigors, hereby certify under the penalties of perjury that on March 15, 2026, I served a true and complete copy of the following documents upon all parties and persons entitled to notice:

Documents Served:

1. Motion for Disqualification of the Honorable Jenny L. McNeill Pursuant to MCR 2.003(C)(1)
2. Brief in Support of Motion for Disqualification
3. Exhibit List in Support of Motion for Disqualification (Exhibits A through J)
4. Proposed Order Granting Motion for Disqualification
5. This Certificate of Service

Method of Service:

☐ MiFILE Electronic Filing — served electronically through the Michigan Court electronic filing system on all registered parties and counsel of record.

☐ First-Class U.S. Mail — deposited in the United States mail, with proper postage prepaid, addressed to:

Emily M. Watson

c/o Jennifer L. Barnes, Esq.

Barnes Law Firm PLLC

880 Jefferson St, Suite B

Muskegon, MI 49440

Jennifer L. Barnes (P[ANDREW: insert bar number])

Barnes Law Firm PLLC

880 Jefferson St, Suite B

Muskegon, MI 49440

Attorney for Defendant

☐ Personal Service — personally delivered to:

N/A

Additional Notice:

☐ Copy delivered to the Chief Judge of the 14th Circuit Court pursuant to MCR 2.003(D), for assignment of the disqualification motion if not granted by the challenged judge.

☐ Copy delivered to the 14th Circuit Court Clerk's Office for filing.

I declare that the foregoing statements are true and correct.

Date: March 15, 2026

Andrew J. Pigors, Plaintiff Pro Se

1977 Whitehall Rd

North Muskegon, MI 49445

(231) 903-5690

[ANDREW: insert your email address]

FILING CHECKLIST — MOTION TO DISQUALIFY JUDGE McNEILL

Case: Pigors v. Watson, No. 2024-001507-DC

Court: 14th Circuit Court, Muskegon County, Family Division

Filing Deadline: March 15, 2026

****Filed By:**** Andrew J. Pigors, Plaintiff Pro Se

PRE-FILING CHECKLIST

Document Preparation

- ☐ MOTION_TO_DISQUALIFY_FINAL.md — Motion for Disqualification (MCR 2.003(C)(1))
- ☐ Caption correct (14th Circuit Court, Muskegon County, Family Division)
- ☐ Case number verified: 2024-001507-DC
 - ☐ Judge name correct: Hon. Jenny L. McNeill
- ☐ All three MCR 2.003(C)(1) grounds addressed: (a), (b)(i), (b)(ii)
- ☐ Statistical evidence cited (52 ex parte orders, 44% rate, 100% one-sided)
- ☐ 1,127 violations referenced with category breakdown
- ☐ Top 20 violations listed with dates
- ☐ Constitutional violations enumerated (1st, 4th, 6th, 14th Amendments)
- ☐ Canon violations addressed (Canons 1, 2, 3)
- ☐ Relief requested (disqualification, reassignment, de novo review, interim parenting time)
- ☐ Verification paragraph included (MCL 600.1736)
- ☐ Signature line present

- [] Filing date: March 15, 2026
- [] BRIEF_IN_SUPPORT.md — Brief in Support of Motion
- [] MCR 2.003 standard fully articulated
- [] Caperton v. Massey Coal, 556 U.S. 868 (2009) — cited and applied
- [] In re Murchison, 349 U.S. 133 (1955) — cited and applied
- [] Liteky v. United States, 510 U.S. 540 (1994) — cited and applied
- [] Turner v. Rogers, 564 U.S. 431 (2011) — cited and applied
- [] Troxel v. Granville, 530 U.S. 57 (2000) — cited and applied
- [] Michigan cases: Cain v. Dep't of Corrections, 451 Mich. 470 (1996)
- [] Michigan cases: In re Contempt of Dougherty, 429 Mich. 81 (1987)
- [] Statistical anomaly argument with mathematical analysis
- [] Application of law to facts for each MCR 2.003(C)(1) ground
- [] EXHIBIT_LIST.md — List of Supporting Exhibits
- [] Exhibit A: Ex Parte Hearing and Order Log
- [] Exhibit B: Denied Motion Log
- [] Exhibit C: Timeline of Bias Incidents
- [] Exhibit D: Comparative Statistics (Disparate Treatment)
- [] Exhibit E: Judicial Violations Summary (1,127)
- [] Exhibit F: Judicial Canons Matrix
- [] Exhibit G: HealthWest Evaluation Interference Documentation
- [] Exhibit H: Constitutional Violations Summary

- [] Exhibit I: Drug Screen and Exculpatory Evidence Summary
 - [] Exhibit J: Forensic Judicial Analysis Summary (3,003 findings)
 - [] PROPOSED_ORDER.md — Proposed Order Granting Disqualification
 - [] Checkbox format for findings
 - [] Reassignment options included
 - [] De novo review provisions
 - [] Interim parenting time provision
 - [] Record preservation requirement
 - [] CERTIFICATE_OF_SERVICE.md — Certificate of Service
 - [] All documents listed
 - [] Service method checkboxes (MiFILE / Mail / Personal)
 - [] Defendant's address placeholder
 - [] Chief Judge notice provision (MCR 2.003(D))
 - [] Signature line and date
-

FILING PROCEDURE

Step 1: Convert to PDF

- [] Convert all .md documents to formatted PDF
- [] Verify PDF formatting, pagination, and readability
- [] Combine into single filing package if required by local rules

Step 2: MiFILE Electronic Filing

- [] Log into MiFILE (<https://mifile.courts.michigan.gov>)
- [] Select Case No. 2024-001507-DC
- [] Filing type: Motion to Disqualify Judge (MCR 2.003)
- [] Upload: Motion, Brief, Exhibit List, Proposed Order, Certificate of Service
- [] Pay filing fee (if applicable) or submit fee waiver
- [] Confirm submission and save confirmation number

Step 3: Service

- [] Serve Defendant (Emily Watson) via method selected in Certificate of Service
- [] Serve Chief Judge of 14th Circuit Court (MCR 2.003(D))
- [] Retain proof of service

Step 4: Post-Filing

- [] Save MiFILE confirmation receipt
- [] Calendar: Response deadline (per MCR 2.003(D) timeline)
- [] Calendar: If denied by Judge McNeill → referral to Chief Judge (MCR 2.003(D)(3)(a))
- [] Calendar: If denied by Chief Judge → appellate options (MCR 7.203(B))
- [] Retain copies of all filed documents

KEY DEADLINES

Event	Date	Rule

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Filing deadline	March 15, 2026	Self-imposed
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| Response from Judge McNeill | Within reasonable time per MCR 2.003(D) | MCR 2.003(D)(2) |

| Referral to Chief Judge (if denied) | Immediate upon denial | MCR 2.003(D)(3)(a) |

| Appellate review (if needed) | Per MCR 7.203(B) timeline | MCR 7.203(B) |

IMPORTANT NOTES

1. MCR 2.003(D)(2): The challenged judge may rule on the motion. If not granted, the motion proceeds to the chief judge.
 2. MCR 2.003(D)(3)(a): If the challenged judge denies the motion, it must be referred to the chief judge.
 3. Preserve all records: Ensure the complete filing record is preserved for potential appellate review.
 4. Supervisory review: If all circuit-level remedies are exhausted, consider application for leave to appeal to the Michigan Court of Appeals under MCR 7.203(B).
-

Prepared: March 15, 2026

By: Andrew J. Pigors, Plaintiff Pro Se